
Notice of Termination NOT-KFI2-001

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference:	NOT-KFI2-001
Date:	14-Jun-2021
Contract No.:	KMDA/KFI2/CW/2019-04
From:	Kaldera Metropolitan Development Authority
To:	Rennick Builders Ltd.
CC:	Ashgrove Infrastructure Consultants

Subject: Notice of Termination — Sub-Clause 15.2

We refer to Notice to Correct NTC-KFI2-001 dated 26-Apr-2021, requiring the Contractor, by 07-Jun-2021, to mobilise to programme resource levels, submit and commence a recovery programme, and achieve not less than 55 per cent overall progress.

The Engineer's assessment as at 07-Jun-2021 records overall progress of 46 per cent, against the 55 per cent required. While a recovery programme was submitted with Contractor's Response CTR-KFI2-001 dated 10-May-2021, actual progress against it has fallen materially short at every reporting point since.

Pursuant to Sub-Clause 15.2, we hereby terminate the Contract on the following grounds: (a) failure to remedy, within the period stated in NTC-KFI2-001, the failures identified in that notice; and (b) persistent failure to proceed with the Works with due diligence, sustained over the period recorded in Progress Assessment EPA-KFI2-001 and subsequent reporting, such that completion within the Time for Completion (as it may have been extended) is no longer achievable.

This ground is independent of, and additional to, the Ramp C utility relocation delay referred to in CTR-KFI2-001: the shortfall recorded against the 55 per cent target is materially greater than any delay attributable to that single, limited event.

Termination shall take effect on 21-Jun-2021, being not less than seven days from the date of this notice. The Contractor shall cease further execution of the Works, leave the Site, and deliver up Contractor's documents, Plant, Materials and other things as instructed by the Engineer, in accordance with Sub-Clause 15.2.

Regards,
Kaldera Metropolitan Development Authority